

## Scrutiny Defects Raised

**Diary No :** 0710102029262018  
**Petitioner :** MR. SHAILENDRA KUMAR AGARWAL  
**Respondent :** M/S CHD DEVELOPERS LIMITED

| Serial No. | Description                                                                                                                                                                                                                                                                                              | Comments |
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| 1          | Whether the petition/application/appeal falls under the territorial jurisdiction of New Delhi/-----Bench of NCLT?                                                                                                                                                                                        |          |
| 2          | Whether petition/application/appeal/reply and all enclosures are legible and in English language?                                                                                                                                                                                                        |          |
| 3          | Whether petition/application/appeal/reply has been printed in double spacing on one side of standard petition paper with an inner margin of about four centimeter width on top and with a right margin of 2.5cm left margin of 5cm and duly paginated, indexed and stitched together in paper book form? |          |
| 4          | Whether the relevant provisions of the Companies Act 2013/NCLT rules, 2016 have been clearly mentioned in the petition/application/appeal?                                                                                                                                                               |          |
| 5          | Whether Petitioner/aplication/appellant is entitled to and have the requisite qualification to file the petition e.g. Under section 241 and 242 of the Companies Act, 2013 in accordance with section 244 of the Act & attached documentry proof of entitlement?                                         |          |
| 6          | Whether the petitioner/application/appeal/reply has been signed at the foot of each page by all the petitioner /applicant/appellant/respondent and their name (s) has also been mentioned?                                                                                                               |          |

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| 7  | Whether name of the petitioner/applicant/appellant/respondent complete address viz the name of the road ,street.lane and Municipal Division or Ward Municipal Door and other number of the house; the name of the town or village; the post office, postal district and PIN Code has been mentioned in the petition/application/appeal/reply? |  |
| 8  | Whether fax number,mobile number, valid email address of the petitioner/applicant/appellant/respondent have been mentioned?                                                                                                                                                                                                                   |  |
| 9  | Whether in every interlineations,eraser or correction or deletion in petition/application/appeal/document/reply has been initialed by the party or his authorized representative?                                                                                                                                                             |  |
| 10 | Whether affidavits (Form No NCLT 6) verifying the petition/application/appeal/reply from all the petitioner/applicant/appellant/respondent drawn on non-judicial stamp paper of requisite value duly attested by Notary Public/Oath Commissioner have been filed?                                                                             |  |
| 11 | Whether full name,parentage,age,description of each party,date,address and in case a party sues oe being sued in a representative character, has been set out in accordance to rule 20 (5) of NCLT Rules,2016?                                                                                                                                |  |
| 12 | Whether petition/application/appeal/reply has been drawn in prescribed form form as per Annexure 'A' of NCLT,Rules,2016 with stipulated fee given in the schedule of these rules? The fee is to be paid by Online                                                                                                                             |  |
| 13 | Whether documents accompanied to petition/application/appeal/reply have been duly certified by the authorized representative or advocate filing the petition or application or appeal?                                                                                                                                                        |  |
| 14 | Whether the accompanied documents to the petition/application/appeal/reply has been verified from the originals and are in line with the provisions of Rule 23 NCLT,Rules,2016? The original should be brought before the Deputy Registrar for verification?                                                                                  |  |

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| 15 | Whether petition/application/appeal/reply has been filed in three authenticated copies and delivered to the opposite party?                                                                                          |                                                                                                                              |
| 16 | Whether all relevant enclosures to the petition/application/appeal/reply have been attached as per the annexure 'B' of NCLT rules , 2016?                                                                            |                                                                                                                              |
| 17 | Whether annexure to the petition /application/appeal/reply has been numbered serially?                                                                                                                               |                                                                                                                              |
| 18 | Whether Vakalatnama (with enrollment no.) filed , is bearing court fees stamp of Rs. 2.75 P and in accordance with the circular no. 13/rules/DHC dated 26.10.2009 issued by the Registrar General, Delhi High Court? |                                                                                                                              |
| 19 | Whether documents with regard to share holding/paid up capital/ balance sheet of the petitioner/applicant/appeallant have been attached?                                                                             |                                                                                                                              |
| 20 | Whether notice to be given to the central government along with copy of petition/application/appeal under the relevant provision of the companies act 2013?                                                          |                                                                                                                              |
| 21 | Whether proof of service of the petition/application/appeal/reply on the concerned registrar of companies and regional director, Ministry of Corporate Affairs has be filled?                                        |                                                                                                                              |
| 22 | Whether proof of service of the petition/application/appeal/reply on all the respondents as well as caveat or (S) , if any has been filed?                                                                           |                                                                                                                              |
| 23 | Whether brief of synopsis within two or three pages has been filed?                                                                                                                                                  |                                                                                                                              |
| 24 | Whether date of events within two or three pages has been filed                                                                                                                                                      |                                                                                                                              |
| 25 | Remarks of - Scrutiny Clerk/Assistant Registrar/Deputy Registrar                                                                                                                                                     | page: 55-68 not clear<br>79, 77<br>page:33a missed<br>page: 81-83 not clear<br>99<br>page:36 wrong arrange<br>page:41 missed |
| 26 | Whether the application is complete as per general check list of NCLT issued vide order no.25/2/2016-NCLT dated 28.7.2016.                                                                                           |                                                                                                                              |
| 27 | Whether requisite fee has been paid:                                                                                                                                                                                 |                                                                                                                              |

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| 28 | (i) Application u/s 230 (1) of Companies Act, 2013 and Rule 3 (1) of CAA Rules, 2016- Rs.5,000/-                                                                                         |  |
| 29 | (ii) Application u/s 235 (2) of Companies Act, 2013 - Rs.1,000/-                                                                                                                         |  |
| 30 | (iii) Application u/s 238 (2) of Companies Act, 2013 and Rule 29 of CAA Rules, 2016- Rs.2,000/-                                                                                          |  |
| 31 | Whether Company Application (Involving Transferor & Transferee Company may be a single unit or multiple unit) is jointly or individually filed?                                          |  |
| 32 | Whether brief of synopsis and Index have been filed?                                                                                                                                     |  |
| 33 | Whether there is any pendency of any investigation/proceedings/litigation against the Applicant Company.                                                                                 |  |
| 34 | Whether Company Application is in (Form No. NCLT.1) duly signed by the Applicant Company or its authorized representative? (Rule 3 (1) of CAA Rules, 2016)                               |  |
| 35 | Whether Company Application is Supported by Notice of Admission(Form No NCLT.2) duly signed by the Applicant Company or its authorized representative?(Rule 3 (1) (i) of CAA Rules,2016) |  |
| 36 | Whether documents accompanied with Company Application have been duly notarized?                                                                                                         |  |
| 37 | Whether Annexures to the petition/application/appeal/reply has been numbered serially?                                                                                                   |  |
| 38 | Whether Company Application encloses:                                                                                                                                                    |  |
| 39 | (i) Incorporation Certificate, MOA & AOA of the applicant company                                                                                                                        |  |
| 40 | (ii) Board Resolution of the Applicant Company                                                                                                                                           |  |
| 41 | (iii) Latest Statement of balance sheet (even if provisional) of the Applicant Company                                                                                                   |  |
| 42 | (iv) Latest auditors report on accounts of the Company                                                                                                                                   |  |
| 43 | (v) Certificate of Chartered Accountant for class of Shareholders/members ?                                                                                                              |  |
| 44 | (vi) Certificate of the Chartered Accountant for class of creditors?                                                                                                                     |  |
| 45 | (vii) if dispensation is sought:                                                                                                                                                         |  |
| 46 | a) Consent of the Shareholders by way of Affidavit                                                                                                                                       |  |

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| 47 | b) Consent of the Creditors by way of Affidavit                                                                                       |  |
| 48 | (viii) A copy of Draft Scheme                                                                                                         |  |
| 49 | Whether Scheme also involves Reduction of Share Capital of the Applicant Company?                                                     |  |
| 50 | Whether Creditors' Responsibility Statement filed (If the Scheme includes Corporate Debt Restructuring)?-Form CAA-1                   |  |
| 51 | Whether auditor's report, Statement as per RBI guideline and Valuation report in conformity with Section 230 (2) (c) have been filed. |  |